

## **PERMANENT STORMWATER EASEMENT**

KNOW ALL MEN BY THESE PRESENTS: That: Board of Education Brecksville-Broadview Heights City School District hereinafter the “GRANTOR”, for and in consideration of the sum of one dollar (\$ 1.00) does hereby give, grant, bargain, and convey, to the Northeast Ohio Regional Sewer District, a regional sewer district organized and existing as an independent political subdivision of the State of Ohio under Chapter 6119 of the Ohio Revised Code, acting pursuant to Resolution No. [REDACTED], adopted by its Board of Trustees on June 26, 2019, hereinafter the “GRANTEE”, forever and in perpetuity, a Stormwater Easement for the purposes hereinafter described, in, across, through, upon, over, and under certain areas (herein, the “Easement Area”, as described herein below) of the real estate situated in Broadview Heights, and known as Parcel No. 583-25-002 (herein, the “Real Estate”), together with a right of ingress and egress over the Real Estate to access the Easement Area described herein. GRANTOR claims title to said Real Estate by deed recorded in the Cuyahoga County, Ohio Recorder’s office in Vol. 12385, page 301.

The Easement Area contains 14.2 acres, more or less, within said Real Estate and is more particularly described in Exhibit “A” which is attached hereto, made a part hereof, and incorporated herein.

Said Stormwater Easement is hereby granted and conveyed together with all the rights, privileges, appurtenances, and advantages thereto belonging or appertaining to their use and benefit forever by the GRANTEE. This Stormwater Easement is provided to the GRANTEE for the purposes of installing, constructing, reconstructing, improving, operating, repairing, inspecting, renewing, maintaining, removing and replacing stormwater facilities, including, but not limited to, gabion structures (herein, collectively, the

“Facilities”) within the Easement Area. The exercise and nature of the rights granted herein shall be at the sole discretion of the GRANTEE.

GRANTOR agrees not to excavate or fill land or build, construct, place or permit any landscaping, planting, pavement, building or other structure or item upon or within the Easement Area or the Real Estate in a manner which would interfere with the activities and purposes of GRANTEE as set forth herein or to otherwise conduct activities or use the Real Estate in a manner which would interfere with the activities and purposes of GRANTEE as set forth herein. Further, GRANTOR shall not cause or permit others to remove or willfully alter the Facilities.

The GRANTEE shall, at all times, have the right to access the Easement Area and Facilities and to ingress and egress over the Real Estate to enter upon the Easement Area to do all things necessary for the activities and purposes set forth herein, including, but not limited to, the use of vehicles, equipment, materials and machinery within the Easement Area and their transportation across the Real Estate to access the Easement Area for the activities and purposes set forth herein. GRANTEE agrees to repair or replace, if necessary, any damages to the surface of the Real Estate disturbed by reason of or in connection with the activities and purposes herein granted, so that said Real Estate will return to substantially the same condition in which it was found prior to the commencement of such activities and purposes, except that GRANTEE shall not be required to replace any trees within the Easement Area which are damaged at any time, nor shall it be required to replace any landscaping installed within the Easement Area after the initial construction of the said Facilities and subsequently disturbed by GRANTEE in connection with the activities and purposes herein granted to it.

This grant of Stormwater Easement will run with the land and will be binding on and will inure to the benefit of the GRANTOR and GRANTEE, and their respective heirs, successors and assigns and the rights herein granted shall continue in perpetuity.

To have and to hold the land herein before described unto the GRANTEE for the aforesaid uses and purposes.

IN WITNESS WHEREOF, this instrument is executed this \_\_\_\_\_ day of \_\_\_\_\_, 2019.

OWNER

By: \_\_\_\_\_

Print: \_\_\_\_\_

Title: \_\_\_\_\_

Signed and acknowledged  
in the presence of:

STATE OF OHIO                    }

COUNTY OF CUYAHOGA } ss:

On this \_\_\_\_\_ day of \_\_\_\_\_, 2019, before me, a Notary Public in  
and for said County, personally appeared, \_\_\_\_\_, the  
GRANTOR in the foregoing document, who executed this Easement and acknowledged the  
signing thereof to be their voluntary act and deed.

Witness my official signature and seal on the day last above mentioned.

\_\_\_\_\_  
NOTARY PUBLIC

The legal form of this instrument is approved.

DATE\_\_\_\_\_, 20\_\_.

\_\_\_\_\_  
Eric Luckage  
Chief Legal Officer  
Northeast Ohio Regional Sewer District

Northeast Ohio Regional Sewer District

By:\_\_\_\_\_  
Kyle Dreyfuss-Wells  
Chief Executive Officer

And:\_\_\_\_\_  
Darnell Brown  
President, Board of Trustees

This instrument prepared by:

Julie A. Blair, Esq.  
Northeast Ohio Regional Sewer District  
3900 Euclid Avenue  
Cleveland, Ohio 44115  
(216) 881-6600